

25NNCV09178 25NNCV09178

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Case Number: 25NNCV09178 Hearing Date: August 4, 2026 Dept: P

[TENTATIVE] ORDER DENYING DEFENDANT'S MOTION TO SET ASIDE/VACATE DEFAULT

I. INTRODUCTION

On December 23, 2025, Plaintiff Pablo Fernandez ("Plaintiff"), in pro per, filed the instant action against Defendant State Farm General Insurance Company ("Defendant") asserting causes of action for breach of contract and declaratory relief.

On April 14, 2026, the Clerk entered Defendant's default. On May 26, 2026, Plaintiff filed a default judgment package; however, no default judgment has been entered. On July 7, 2026, Defendant filed the instant motion to set aside the entry of default pursuant to Code of Civil Procedure section 473, subdivision (b). Plaintiff filed an opposition on July 22, 2026, and Defendant filed a reply on July 28, 2026.

II. LEGAL STANDARD

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect... [The application] shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473 subd. (b).) "[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court...[Citation.]" (Rappleyea v. Campbell (1994) 8 Cal. 4th 975, 981-82.)

Although a trial court has the discretion to vacate the entry of a default or subsequent judgment, this discretion may be exercised only after the party seeking relief has shown that there is a proper ground for relief and that the party has raised that ground in a procedurally proper manner, within any applicable time limits." (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.) "The defendant must ... demonstrate a satisfactory excuse for not responding to the original action in a timely manner." (Id. at 504.) Moving parties have the initial burden to prove excusable neglect by a preponderance of competent evidence. (Kendall v. Barker (1988) 197 Cal.App.3d 619, 624.)

III. DISCUSSION

Defendant moves for discretionary relief under Code of Civil Procedure section 473, subdivision (b), on the grounds of mistake, inadvertence, surprise, or excusable neglect. A motion under section 473(b) must be brought within a reasonable time, not exceeding six months after entry of default. (Code Civ. Proc., § 473, subd. (b).)

Here, Defendant timely sought relief. Default was entered on April 14, 2026, and Defendant filed the instant motion on July 7, 2026, well within the six-month statutory period. Defendant also acted promptly after learning of the default. According to counsel's declaration, State Farm first received notice of this action on June 5, 2026, upon receipt of Plaintiff's Request for Entry of Default, retained counsel on June 9, 2026, and filed the instant motion less than one month later. (McKeon Decl., ¶¶ 3-4.)

Plaintiff argues that Defendant has failed to establish mistake, inadvertence, surprise, or excusable neglect because the only supporting declaration is from defense counsel, who lacks personal knowledge regarding whether State Farm's registered agent was served or why the summons and complaint were allegedly not forwarded to State Farm. (Opposition, pp. 8-9.) Plaintiff further argues that service upon Defendant's registered agent is presumed valid and Defendant has not presented competent evidence rebutting that presumption. (Id.)

The Court agrees that Defendant's evidentiary showing is insufficient. Defendant offers no declaration from a State Farm employee, its registered agent for service of process, or any other individual with personal knowledge explaining the circumstances that resulted in the default. Nor does Defendant present evidence disputing the validity of the filed proof of service. Instead, Defendant relies solely on the declaration of defense counsel, who was retained after the default had already been entered. Counsel's declaration establishes only that State Farm received Plaintiff's Request for Entry of Default on June 5, 2026, retained counsel on June 9, 2026, and thereafter discovered that default had been entered. (McKeon Decl., ¶¶ 3-4.)

However, counsel's declaration does not explain why Defendant failed to timely respond to the complaint or identify the mistake, inadvertence, surprise, or excusable neglect that caused the default. It contains no facts regarding whether the summons and complaint were received by Defendant's registered agent, whether service was forwarded to State Farm, whether an internal clerical or administrative error occurred, or any other circumstances from which the Court could determine whether Defendant's neglect was excusable. Rather, Defendant asks the Court to infer excusable neglect based solely on the fact that it later learned of the lawsuit after default had been entered. This showing is insufficient to satisfy Defendant's burden under Code of Civil Procedure section 473, subdivision (b). (See *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423; *Kendall v. Barker* (1988) 197 Cal.App.3d 619, 624-625.)

Although California law favors resolving cases on the merits, that policy does not relieve a moving party of its burden to present competent evidence establishing entitlement to discretionary relief under section 473(b). Because Defendant has failed to provide a sufficient factual basis demonstrating mistake, inadvertence, surprise, or excusable neglect, the Court declines to exercise its discretion to set aside the entry of default.

Thus, the motion is DENIED without prejudice.

IV. CONCLUSION AND ORDER

The Court DENIES Defendant's motion to set aside/vacate default without prejudice.

Defendant is to give notice.

Dated: August 4, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT